TATHASTU
Institute Of Civil Services

POLITY AND GOVERNANCE

Sine Qua Non

CENTRE-STATE RELATIONS, GOVERNOR & CONSTITUTIONAL REFORM

Key Committees, Commissions & Recommendations

GS Paper II — Polity & Governance

1. Sarkaria Commission (1983)

Set up to examine and recommend improvements in Centre-State relations. Concluded that the existing constitutional arrangements were basically sound, but functional changes were needed.

Guiding Philosophy

- Federalism is more a **functional arrangement for cooperative action** than a static institutional concept.
- Advocated a **strong Centre but not centralisation of powers** — a strong Centre is essential to safeguard national unity against fissiparous tendencies.

> **Sarkaria's Memorable Line**
>
> ▸ "Centralisation leads to blood pressure at the Centre and anaemia at the periphery."

Key Institutional Recommendations

- Set up a **Permanent Inter-State Council** under Article 263.
- **Article 356** (President's Rule) should be used very sparingly, as a measure of last resort.
- **All-India Services** should be further strengthened; more such services should be created.
- **Residuary powers** should be placed in the Concurrent List, except residuary powers of taxation.
- When the **President withholds assent** to a State Bill, reasons should be communicated to the State Government.
- Centre should **consult States** before legislating on a Concurrent List subject.

On the Governor

Issues identified in the Governor's functioning:

- No uniformity in criteria for appointment and dismissal of Chief Ministers.
- Inconsistency in reserving Bills for the President's consideration.
- Recommending President's Rule without exhausting all constitutional options to induct/maintain a stable government.
- Criticised for exercising no real discretion in nominations to the Legislative Council.
- Discretionary role as Chancellor of universities (e.g., nominating members to the university council) seen as anomalous.

Recommendations on the Governor

- Selection panel: Chief Minister of the State, Vice-President, and Speaker of the Lok Sabha.
- Governor should be an eminent person from outside the State, with no links to local politics.
- Process of consulting the CM before appointment should be laid down constitutionally.
- Fixed five-year tenure, not removable at the will of the Centre except in compelling circumstances.
- After completing the term, should not be eligible for any other constitutional post.

On Finances & Language

- Corporation tax may be made permissibly shareable with the States.
- Centre should avoid levying surcharge on income tax.
- Uniform implementation of the Three-Language Formula.
- Activate the Commissioner for Linguistic Minorities.

2. State-Centric Efforts: Rajamannar Committee & Anandpur Sahib Resolution

- **Rajamannar Committee (Tamil Nadu, 1969):** State-centric recommendations for greater autonomy; contains several findings later regarded as rational and influential in the autonomy debate.
- **Anandpur Sahib Resolution:** Sought maximum autonomy for states, restricting the Centre's role largely to defence, foreign affairs, currency and communications — an early articulation of the states'-rights position.

3. Punchhi Commission (2007)

Constituted to re-examine Centre-State relations in light of changes since the Sarkaria Commission — economic liberalisation, coalition politics, and growing regionalism.

Legislative & Executive Federalism

- Broad agreement between Centre and States before legislating on the Concurrent List, for effective implementation.
- Union should be extremely restrained in asserting parliamentary supremacy over matters assigned to States.
- Concurrent List should contain only subjects absolutely necessary for uniformity of policy.

Governor & President's Assent

- **Amend Article 201** — President should decide on assenting to / withholding assent from a State Bill within six months.
- Governor appointments should follow the Sarkaria Commission's process.
- Fixed five-year tenure for Governors, removable only in compelling circumstances, not at the Centre's will.
- **Impeachment of a Governor**, similar to that of the President, should be possible.
- Article 163 confers only limited discretionary power; discretion must be guided by reason and good faith.
- Governor should decide within six months whether to grant assent to a Bill or reserve it for the President.
- Clear constitutional conventions for appointment of the CM in a hung Assembly.
- **Floor test** as the mechanism for testing the CM's majority, rather than dismissal by the Governor.
- Governors should not hold additional statutory positions such as Chancellor of universities.

Localised Emergency

- Proposed a framework for a 'localised emergency' so that the State Government can continue functioning without dissolving the Assembly during a constitutional crisis in a part of the State.

Cooperative Federalism & Institutional Reform

- **Zonal Councils** should meet at least twice a year, with agendas proposed by states, to maximise coordination.
- New **All-India Services** in health, education, engineering and judiciary should be created.
- **Equality of representation in Rajya Sabha** — amend provisions to give States equal seats irrespective of population.
- Scope of devolution of powers to local bodies (institutions of self-government) should be constitutionally defined.

Finances

- Ceiling on profession tax should be removed entirely through a constitutional amendment.
- States should be involved in finalising the Terms of Reference (ToR) of Finance Commissions.
- Central Government should periodically review all existing cesses and surcharges.

4. Second Administrative Reforms Commission (2nd ARC)

Identified structural weaknesses in the legal and administrative framework governing internal security and law enforcement.

Weaknesses Identified

- Delays and unresponsiveness in the system.
- Lack of functional autonomy for law-enforcement and investigation agencies.
- Lack of adequate and effective accountability mechanisms.
- Outdated and unprofessional interrogation and investigation techniques.
- Inadequate training and infrastructure for the police.
- Poor coordination between prosecution and investigation.

Key Recommendations

- **Separate investigation from law-and-order functions** within the police.
- Organised crime, arms and human trafficking, sedition, and major crimes with inter-State ramifications should be investigated by a **central bureau of investigation**.
- **AFSPA should be repealed**, with appropriate provisions instead inserted into the Unlawful Activities (Prevention) Act, 1967 (UAPA).

5. Venkatachaliah Commission — NCRWC (2000–02)

The National Commission to Review the Working of the Constitution; among its most significant contributions were proposals for electoral reform.

Electoral Reforms

- **Partial State funding of elections** to reduce dependence on private donations and curb black money.

- **Strengthening the Election Commission** with greater independence and authority to ensure free and fair elections.
- **Ban on contesting elections** for candidates facing serious criminal charges.
- **Regulation of political parties** — internal democracy within parties should be mandated.
- **Strict enforcement of limits** on electoral expenses.

Quick-Reference Comparison Table

Commission / Committee	Year	Core Mandate / Focus Area
Rajamannar Committee	1969 (Tamil Nadu)	State autonomy; Centre-State relations from a state-centric view
Sarkaria Commission	1983	Comprehensive review of Centre-State relations; strong but non-centralised Centre
Anandpur Sahib Resolution	1973 (Akali Dal)	Maximum autonomy to states; Centre limited to defence, foreign affairs, currency, communication
Punchhi Commission	2007	Updated review of Centre-State relations post-liberalisation; Governor & emergency provisions
2nd ARC (Police & Security related report)	2005-09	Public order, police reforms, internal security architecture
Venkatachaliah Commission (NCRWC)	2000-02	Review of the working of the Constitution; electoral & governance reforms